

Table of Contents

SECTION A	1
A.1 SF 1449 SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	1
SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS.....	4
B.1 LC52.212-2 SUPPLEMENTAL LICENSE AGREEMENTS (JUL 2017)	4
B.2 LC52.216-3 CONTRACT TYPE (JUN 2016)	4
B.3 PRICE/COST SCHEDULE	4
ITEM INFORMATION.....	4
SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK	8
SECTION F - DELIVERIES OR PERFORMANCE	15
F.1 LC52.215-5 PLACE AND PERIOD OF PERFORMANCE (JAN 2019)	15
SECTION G - CONTRACT ADMINISTRATION DATA	16
G.1 LC52.201-3 CONTRACT ADMINISTRATION (AUG 2015).....	16
G.2 LC52.232-1 LIBRARY OF CONGRESS INVOICE INSTRUCTIONS (DEC 2022)	17
G.3 LC52.232-2 SCHEDULE OF PAYMENTS (JUN 2015)	17
SECTION H - SPECIAL CONTRACT REQUIREMENTS	19
H.1 Use of Generative AI.....	19
H.2 LC52.201-1 CONTRACTING OFFICER'S REPRESENTATIVE (COR) APPOINTMENT AND AUTHORITY (JAN 2016)	19
H.3 LC52.203-1 CONTRACTOR PUBLICITY (OCT 2013)	20
H.4 LC52.204-4 CONTRACTOR EMPLOYEE FITNESS (SEP 2024)	20
H.5 LC52.237-1 KEY PERSONNEL (AUG 2014)	21
H.6 LC52.239-1 INFORMATION SECURITY (JUL 2025).....	22
H.7 LC52.239-2 SYSTEMS DEVELOPMENT LIFE CYCLE (SEP 2018)	23
H.8 LC52.239-3 ASSESSMENT AND AUTHORIZATION (JAN 2016).....	23
PART II - CONTRACT CLAUSES	25
SECTION I - CONTRACT CLAUSES	25
I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998).....	25
I.2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025).....	25
I.3 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)	32
I.4 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)	32
I.5 LC52.212-3 INCORPORATION OF CONTRACTOR PROPOSAL (JUN 2016)	32

I.6 LC52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS (DEV) (FEB 2016).....	32
I.7 LC52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL ITEMS (DEV) (MAY 2015)	32
I.8 LC52.227-1 ASSIGNMENT OF COPYRIGHT TO THE LIBRARY OF CONGRESS (DEC 2001).....	33
I.9 LC52.232-25 PROMPT PAYMENT (DEV) (JUL 2013).....	33
I.10 LC52.233-1 52.233-1 (DEV) DISPUTES (MAY 2014).....	33
PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	34
SECTION J - LIST OF ATTACHMENTS	34
J.1 ATTACHMENT LIST	34
PART IV - REPRESENTATIONS AND INSTRUCTIONS.....	35
SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	35
K.1 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024).....	35
SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	51
L.1 LC52.233-2 PROTESTS TO THE LIBRARY OF CONGRESS (DEC 2013).....	51
L.2 QUOTE SUBMISSION INSTRUCTIONS - BEST VALUE TRADE-OFF	51
SECTION M - EVALUATION FACTORS FOR AWARD.....	54
M.1 EVALUATION – BEST VALUE TRADE-OFF	54

SECTION B - SUPPLIES OR SERVICES AND PRICE/COSTS

B.1 LC52.212-2 SUPPLEMENTAL LICENSE AGREEMENTS (JUL 2017)

The Library does not agree to licensing agreements or any other provisions that attempt to: (1) replace an order as the governing contract; (2) establish new or supplemental payment terms; or, (3) affect the legal relationships of the parties. Notwithstanding any clauses in this contract or order, or the contractual vehicles against which the order is placed, that establish order of precedence, the rights and obligations provided by this contract or order take precedence over the rights and obligations set forth in any licensing agreements provided to the Library.

The Library's incorporation of a licensing agreement into this contract or order excludes all terms of the licensing agreement that contravene, modify or conflict with the terms of [36 C.F.R. 701.7](#) available at: https://www.ecfr.gov/cgi-bin/text-idx?SID=87a865ce2bd109313a951a3d477895d8&mc=true&node=se36.3.701_17&rgn=div8.

(End of Clause)

B.2 LC52.216-3 CONTRACT TYPE (JUN 2016)

This is a Firm-Fixed-Price contract.

(End of Clause)

B.3 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	BWF MetaEdit feature enhancement/new development Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027	1.00	LOT		
0002	BWF MetaEdit maintenance Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027	12.00	MONTH		
0003	BWF MetaEdit updated documentation Contract Period: Base	1.00	LOT		

POP Begin: 02-03-2026 POP End: 02-02-2027			
0004	1.00	LOT	_____
FFmpeg feature Enhancement/New Development Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027			
0005	1.00	LOT	_____
FFmpeg feature Enhancement/New Development Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027			
0006	12.00	MONTH	_____
FFmpeg maintenance Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027			
0007	1.00	LOT	_____
FFmpeg user testing with report of findings Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027			
0008	1.00	LOT	_____
FFmpeg updated documentation Contract Period: Base POP Begin: 02-03-2026 POP End: 02-02-2027			
0101	1.00	LOT	_____
BWF MetaEdit feature enhancement/new development Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028			

0102	12.00	MONTH	_____	_____
BWF MetaEdit maintenance Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0103	1.00	LOT	_____	_____
BWF MetaEdit user testing with report of findings Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0104	1.00	LOT	_____	_____
BWF MetaEdit updated documentation Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0105	1.00	LOT	_____	_____
FFmpeg feature Enhancement/New Development Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0106	12.00	MONTH	_____	_____
FFmpeg maintenance Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0107	1.00	LOT	_____	_____
FFmpeg user testing with report of findings Contract Period: Option 1 POP Begin: 02-03-2027 POP End: 02-02-2028				
0108	1.00	LOT	_____	_____
FFmpeg updated documentation Contract Period: Option 1 POP Begin: 02-03-2027				

POP End: 02-02-2028

GRAND TOTAL _____

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

Statement of Work

FADGI Open-Source Software Development and Maintenance for AudioVisual Content

C.1 OVERVIEW / BACKGROUND.

The Library of Congress (Library) requires a contract to provide technical support and feature enhancement for two free open-source software tools on behalf the Federal Agencies Digital Guideline Initiative (FADGI) Audio-Visual Working Group.

The two free open-source tools are:

- BWF MetaEdit, which supports embedding, validating, and exporting of metadata in Broadcast WAVE Format (BWF) files according to the published FADGI guidelines (<http://www.digitizationguidelines.gov/guidelines/digitize-embedding.html>). BWF MetaEdit is the leading tool for embedding metadata in digitized audio files. Use statistics show an average of 100 downloads a week and over 50,000 downloads since initial release. BWF MetaEdit is in use at many organizations across the world including NAVCC.
- FFmpeg framework which includes ffmpeg, a command line transcoding tool which can convert audiovisual material from one format/encoding to another, and ffprobe, which gathers information such as the format of the container used by a multimedia stream and the format and type of each media stream contained in it and prints it in human- and machine-readable fashion. FFmpeg is in use throughout the world and updates are essential to planned file format work related to FFV1 and Matroska for FADGI and NAVCC.

*See Attachment J1: TERMS AND ACRONYMS

C.2 SCOPE

The contractor shall provide troubleshooting support, maintenance and feature development for BWF MetaEdit and FFmpeg free open-source software applications to support FADGI projects and guidelines.

C.3 REQUIREMENTS

C.3.1 Project Management

The contractor shall follow the Project Management Plan (PMP) incorporated in their final proposal that includes technical approach, organizational resources and management controls to be employed to meet the price, performance and schedule requirements throughout contract performance. The contractor shall participate in a Project Management meeting initiated by the FADGI within 10 days of the contract kickoff.

C.3.2 BWF MetaEdit

C.3.2.1 BWF MetaEdit Feature Enhancement/New Development

The contractor shall develop the BWF MetaEdit open-source software to enhance functionality and new features including support for new use cases from work related to content authenticity and provenance including C2PA/Content Credentials, such as those underway in the [C2PA for G+ LAM Community of Practice](#), the [FADGI Adding C2PA Manifest to Guidelines for Embedded Metadata in Broadcast Wave Files](#) projects and the current contract work under LCCGD24P0014, [FADGI Embedded Metadata Tools and Services Continued Development](#), to comply with to-be drafted tiered community recommendations for implementing content authenticity and provenance for digital audiovisual collections content. Additional work will continue efforts to improve accessibility functionality. The contractor will work in consultation with FADGI to develop a prioritized set of tasks which may include:

- Prioritized from the Issues Tracker in GitHub (<https://github.com/MediaArea/BWFMetaEdit/issues>) – this list is in active development/state of change
- Tasks related to implementing content authenticity and provenance data in Wave files in connection to related FADGI projects. The itemized list of tasks will be provided
- Specific items for BWF MetaEdit in the [Accessibility Evaluation Report: Research and Improvements for FADGI Open-Source Software Applications](#) (https://www.digitizationguidelines.gov/guidelines/accessibility_software.html). The itemized list of tasks will be provided
- Other topics from discussions with FADGI and community members

The Library expects to have at least one new software version release during each contract year.

C.3.2.2 BWF MetaEdit Support and Maintenance

The contractor shall provide 48 working hours of support for troubleshooting and updates in the Base Year and the Option Year (if exercised).

The contractor shall respond to requests from FADGI and other users within 48 hours with issues corrected within 96 hours.

C.3.2.3 BWF MetaEdit User Testing

The contractor shall conduct user testing to discover and correct bugs and other flaws for new and revised development features. The contractor shall complete testing remotely with at least five users from the FADGI Stakeholder Group (see 3.4). There shall be at least one round of user testing and issue reconciliation before each major version release. There is expected to be at least one major release per contract year.

The contractor shall provide a summary of the testing outcomes and proposed solutions to the Library of Congress Project Manager and COR for agreement on changes before each final release.

C.3.2.4 BWF MetaEdit Documentation

The contractor shall provide documentation about bug fixes, new or updated features in user guides (such as those available on BWF MetaEdit website: <https://mediaarea.net/BWFMetaEdit>) and application change logs.

C.3.3 FFmpeg

C.3.3.1 FFmpeg Feature Enhancement/New Development

The contractor shall provide development of FFmpeg to enhance functionality and new features to better support FFV1 (standardized in [IETF RFC 9043](https://tools.ietf.org/html/rfc9043)), Matroska and MXF, especially for RDD 48: MXF Archive and Preservation Format Amd 1 authored by FADGI and published through SMPTE. A major component of this work is resolving labeling and support for multiple timecodes in Matroska.

The contractor, in consultation with the COR and FADGI, shall develop a prioritized set of tasks which may include:

- User testing for FFmpeg patch for caption and timecode support:
<https://patchwork.ffmpeg.org/project/ffmpeg/patch/20220711214417.12286-1-michael@niedermayer.cc/>
- Engaging with the CELLAR community and Matroska standards authors to resolve issues related to labeling and support for multiple timecodes in Matroska
- Other topics from discussions with FADGI and community members

C.3.3.2 FFmpeg Support and Maintenance

The contractor shall provide 32 working hours of support for troubleshooting and updates in each the Base Year and the Option Year (if exercised).

The contractor shall respond to requests from FADGI and other users within 4 business days with plans for issue corrections within 12 business days (because timelines for review/approval for FFmpeg changes are outside the scope of FADGI control).

C.3.3.3 FFmpeg User Testing

The contractor shall conduct user testing to discover and correct bugs and other flaws for new and revised development features. The contractor shall complete testing remotely with at least five users from the FADGI Stakeholder Group (see 3.4). There shall be at least one round of user testing and issue reconciliation before each major version release. There is expected to be at least one major release per contract year.

The contractor shall provide a summary of the testing outcomes and proposed solutions to the Library of Congress Project Manager and COR for agreement on changes before final release.

C.3.3.4 FFmpeg Documentation

The contractor shall provide documentation about bug fixes, new updated features supported by FADGI in user guides (such as those available on FFmpeg website: <https://ffmpeg.org/documentation.html>) and application change logs.

C.3.4 FADGI Stakeholder Group

In collaboration with the Library of Congress Project Manager and COR, the contractor shall conduct user testing of new development and improvement in the open-source applications with members of the FADGI Stakeholder Group comprised of appropriate LOC Staff, FADGI institutional members and other invited community members. There shall be at least one round of user testing and issue reconciliation before each major version release. There is expected to be at least one major release per contract year.

The contractor shall perform application testing and discussions with the FADGI Stakeholder Group remotely. The Library of Congress will provide the meeting platform (such as Zoom or Microsoft Teams or equivalent).

C.3.5 Software/Documentation Licensing and Distribution

The contractor shall not retain ownership claim or other rights to any of the software code, documentation, compiled application or any other deliverable from this contract work. See LC52.227-1 Assignment of Copyright to the Library of Congress.

The contractor shall be responsible for publishing the updated software to the respective distribution platforms for each software.

BWF MetaEdit updates shall retain the existing license created by the Library of Congress (<https://mediaarea.net/BWFMetaEdit/License>). The contractor shall clearly state on any new code developed to enhance features or functionality that it complies with distribution as a Public Domain.

The contractor shall ensure that the components of FFmpeg developed by the contractor on behalf of FADGI shall conform to the licenses declared by FFmpeg on <https://ffmpeg.org/legal.html>.

C.4 CONTRACT PERFORMANCE

C.4.1 SCHEDULE OF EVENTS/DELIVERABLES

The COR will inspect all submitted deliverables for compliance to contract specifications and provide comments or approval to the contractor on the submitted deliverables in ten calendar days of receipt of delivery.

Paragraph reference	Description of Event/Deliverable	Due date/Payment schedule
3.1	Kickoff meeting, including links to or copies of relevant government furnished specifications: SMPTE MXF Archive and Preservation Format Registered Disclosure Document (RDD 48) , SMPTE RDD 48:2018 Amendment 1:2022 , and FFV1 Video Coding Format Versions 0, 1, and 3 (RFC 9043)	Within 5 business after the period of performance start date
3.1	Final PMP that incorporates COR comments	Within 5 business days after contract kickoff
3.1	Participate in Project Management meeting initiated by FADGI	Within 10 days after contract kickoff

3.2.1	BWF MetaEdit Feature Enhancement/Development with new software releases as needed.	Within 9 months of after the period of performance start date for Base Year and 9 months from the start date of the Option Year, if exercised
3.2.2	BWF MetaEdit Ongoing Maintenance	For 24 months after the period of performance start date (12 months for Base Year; 12 months for Option Year, if exercised)
3.2.3	BWF MetaEdit User testing with report of findings	Within 11 months of after the period of performance start date for Base Year and 11 months from the start date of the Option Year, if exercised
3.2.4	BWF MetaEdit updated documentation for user guides and application change logs	Within 11 months after the period of performance start date for Base Year and 11 months from the start date of the Option Year, if exercised
3.3.1	FFmpeg Feature Enhancement/Development with new software releases as needed.	Within 9 months after the period of performance start date for Base Year and 9 months from the start date of the Option Year, if exercised
3.3.2	FFmpeg ongoing maintenance	For 24 months after the period of performance start date (12 months for Base Year; 12 months for Option Year, if exercised)
3.3.3	FFmpeg user testing with report of finding	Within 11 months after the period of performance start date for Base Year and 11 months from the start date of the Option Year, if exercised
3.3.4	FFmpeg updated documentation for user guides and application change logs	Within 11 months after the period of performance start date for Base Year and 11 months from the start date of the Option Year, if exercised

C.4 ADDITIONAL INFORMATION

C.4.1 GOVERNMENT FURNISHED INFORMATION:

- The Library will provide the contractor with a copy of the published [SMPTE MXF Archive and Preservation Format Registered Disclosure Document \(RDD 48\)](#) and [SMPTE RDD 48:2018 Amendment 1:2022](#) (mapping of FFV1 to MXF). (See Schedule of Events/Deliverables)
- The Library will provide the contractor with a copy of the published IETF FFV1 specification, RFC 9043.
- The Library will provide the contractor with the itemized list of tasks for BWF MetaEdit accessibility improvement and content authenticity and provenance recommendations, including the tiered community recommendations currently in development.
- The Library will provide the contractor with selected sample files for testing and research via a mutually agreed upon method such as email or Media Shuttle.

C.4.2 CONTRACTOR STAFF AND KEY PERSONNEL QUALIFICATIONS

C.4.2.1 Contractor Staff

Technical Expert(s) Shall:

- Demonstrate at least five (5) years of experience with developing, evaluating, and implementing open-source software related to structured embedded metadata within audiovisual files in the cultural heritage domain. The information provided should document previous relevant projects and explain the expert's participation in the projects.
- Demonstrate at least five (5) years of experience with developing, evaluating, and implementing open-source software tools with primary functions for file format validation and metadata extraction.
- Demonstrate at least two (2) years of experience with provenance and authentication processes for audiovisual content, preferable with C2PA implementation and research.
- Demonstrate experience with software support, including bug fixes and resolving issues in a prompt and courteous manner.
- Demonstrate detailed experience with the Broadcast Wave (wav/bwav), FFV1, Matroska (mkv) and Material Exchange Format (mxf) file formats including embedded metadata, timecode, captions and fixity/content integrity structures.
- Demonstrate ability to communicate effectively both orally and in writing, including writing and editing technical and analytical products.

C.4.2.2 Key Personnel

Roles that are labeled "Key Personnel" shall be handled in accordance with Library Clause LC52.237-1 listed in Section H regarding the listed key personnel.

The following key personnel position and expertise required for this project are listed below.

Project Manager:

- The project manager shall have full authority to act for the contractor on all contract matters relating to the daily operation of this contract.
- The project manager must demonstrate at least three (3) years of experience managing complex technical projects related to digital preservation and digital collections including development and monitoring of a Project Management Plan, allocation of resources, reporting, and responsibility for project deliverables.

C.4.3 HANDLING OF GOVERNMENT PROVIDED SAMPLE FILES AND DATA

The contractor shall ensure that all government-furnished audiovisual files, sample data, and any related materials provided under this contract shall be handled in a secure manner. Such materials shall be used solely for contract performance and shall not be disclosed, reproduced, or distributed outside of the scope of this contract without prior written approval.

(End of Statement of Work)

SECTION F - DELIVERIES OR PERFORMANCE

F.1 LC52.215-5 PLACE AND PERIOD OF PERFORMANCE (JAN 2019)

F.1. Period of Performance

The overall period of performance shall be stated in Section B

F.2. Hours of Operation

The contractor is responsible for determining its hours of operation in fulfilling the requirements of this contract. The Library's standard operating hours are from 8:30 AM through 5:30 PM, Monday through Friday, excluding Federal holidays. The contractor shall coordinate with the COR for any work to be conducted at Library facilities.

F.3. Place of Performance

All work for this contract shall be performed remotely at the contractor's facilities.

(End of Clause)

SECTION G - CONTRACT ADMINISTRATION DATA

G.1 LC52.201-3 CONTRACT ADMINISTRATION (AUG 2015)

This contract will be administered by:

Library Contracting Officer: Price, Veronica

Address: Contracts & Grants Directorate

Library of Congress

101 Independence Ave SE.

LA 325

Washington DC 20540-9411

Phone: (202) 707-9335

Email: vprice@loc.gov

Library Contract Specialist: Fitte, Stefanie

Address: Contracts & Grants Directorate

Library of Congress

101 Independence Ave SE.

LA 325

Washington DC 20540-9411

Phone: (202) 893-6318

Email: sfitte@loc.gov

Library Contracting Officer Representative:

Address: To be provided at contract award

To be provided at contract award

Phone:

Email:

Contractor Contract Administrator: Provided at time of award

Address: Provided at time of award

Provided at time of award

Provided at time of award

Provided at time of award

Phone:

Email:

G.2 LC52.232-1 LIBRARY OF CONGRESS INVOICE INSTRUCTIONS (DEC 2022)

The Contractor must prepare and submit invoices electronically to: <https://www.ipp.gov>. The Contractor may submit payment requests using other than electronic means only when alternate procedures are authorized by the contracting officer in writing. Assistance is available via the IPP Help Desk via email at: ippcustomersupport@fiscal.treasury.gov or by commercial telephone at (866) 973-3131. Invoices shall contain the information required in [FAR 52.212-4, paragraph \(g\)](#).

(End of Clause)

G.3 LC52.232-2 SCHEDULE OF PAYMENTS (JUN 2015)

The contractor must submit invoices for payment upon delivery of the items or successful performance of the events in the table below, pursuant to the standards and acceptance criteria defined in this contract.

CLIN	Description	Number of Payments	Payment
0001	BWF MetaEdit feature enhancement/new development Base Year	1	\$ _____
0002	BWF MetaEdit maintenance Base Year	12	\$ _____
0003	BWF MetaEdit user testing with report of findings Base Year	1	\$ _____
0004	BWF MetaEdit updated documentation Base Year	1	\$ _____
0005	FFmpeg feature Enhancement/New Development Base Year	1	\$ _____
0006	FFmpeg maintenance	12	

	Base Year		\$ _____
0007	FFmpeg user testing with report of findings Base Year	1	\$ _____
0008	FFmpeg updated documentation Base Year	1	\$ _____
0101	BWF MetaEdit feature enhancement/new development Option Year 1	1	\$ _____
0102	BWF MetaEdit maintenance Option Year 1	12	\$ _____
0103	BWF MetaEdit user testing with report of findings Option Year 1	1	\$ _____
0104	BWF MetaEdit updated documentation Option Year 1	1	\$ _____
0105	FFmpeg feature Enhancement/New Development Option Year 1	1	\$ _____
0106	FFmpeg maintenance Option Year 1	12	\$ _____
0107	FFmpeg user testing with report of findings Option Year 1	1	\$ _____
0108	FFmpeg updated documentation Option Year 1	1	\$ _____
TOTAL:			\$ _____

(End of Clause)

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 Use of Generative AI

The contractor shall not use generative AI (including, but not limited to ChatGPT, BARD, DALL-E, MidJourney, or Stable Diffusion) to create or produce any deliverables under this contract without specific written authorization from the Contracting Officer. Generative AI systems and tools are those which produce synthetic text, images, code, video, and music in response to user prompts, and include, but are not limited to, ChatGPT, BARD, DALL-E, MidJourney, and Stable Diffusion). For purposes of these requirements, generative AI does not include the use of those AI-enhanced word processing, email, or search tools that are already widely incorporated in day-to-day life such as AI tools embedded in image editing applications or code incorporated into commercial off the shelf products (COTS).

Unless specifically authorized in writing by the Contracting Officer, the Contractor shall not use Library furnished data provided under this contract to feed, train, supplement, or otherwise advance generative AI software.

(End of Clause)

H.2 LC52.201-1 CONTRACTING OFFICER'S REPRESENTATIVE (COR) APPOINTMENT AND AUTHORITY (JAN 2016)

(a) Performance of work under this contract is subject to the technical direction of the COR. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the contract are accomplished satisfactorily.

(b) Technical direction must be within the scope of the contract specification(s)/work statement. The COR does not have authority to issue technical direction that:

- (1) Constitutes additional work outside the contract specification(s)/work statement;
- (2) Constitutes a change as defined in the “Changes” clause of this contract;
- (3) Causes an increase or decrease in the contract price, or the time required for contract performance;
- (4) Changes any of the terms, conditions, or specification(s)/work statement of the contract;
- (5) Interferes with the contractor's right to perform under the terms and conditions of the contract; or
- (6) Directs, supervises or otherwise controls the actions of the contractor's employees.

(c) Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

(d) The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR or the designated representative falls within the limitations

of (b) above, the contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

(e) Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the “Disputes” clause of this contract.

(End of Clause)

H.3 LC52.203-1 CONTRACTOR PUBLICITY (OCT 2013)

The Contractor, or any entity or representative acting on behalf of the Contractor, may not refer to the equipment or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such equipment or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government will consider institution of all remedies available under applicable law.

(End of Clause)

H.4 LC52.204-4 CONTRACTOR EMPLOYEE FITNESS (SEP 2024)

“Contractor employee fitness” means fitness based on character and conduct for work for or on behalf of the Government as a contractor employee.

Work under this contract is unclassified. However, the Library of Congress shall conduct background investigations of contractor personnel who will have 1) regular, ongoing, unescorted access to the Library’s buildings, grounds, or collections, 2) access to Library information technology systems, and/or 3) access to Library information not available to the public, including information determined to be Controlled Unclassified Information (CUI), to ensure they meet basic standards of honesty and trustworthiness pursuant to Library regulations. The Library does not determine the fitness of employees to work for the contractor firm that hires them. The Library’s interest is in determining whether contractor personnel should be granted greater access than the general public to Library facilities, Library information technology systems, and/or non-public Library information.

(1) Any access to non-public Library facilities, Library information technology systems, and/or non-public Library information will require a contractor employee fitness determination. All initial, existing, and reciprocal contractor employee fitness determinations will be subject to continuous vetting. Continuous vetting will vary based on position risk level. An example of continuous vetting is outlined in Trusted Workforce 2.0

(<https://www.performance.gov/trusted-workforce/> and <https://www.dcsa.mil/Personnel-Security/Continuous-Vetting/>).

(2) A favorable contractor employee fitness determination requires completion and successful adjudication of a security application request (release forms, fingerprints, and a full background investigation). To facilitate the fitness determination, the prospective contractor employee shall submit to the Library complete and accurate information as identified on the National Background Investigation Services (NBIS)’s eAPP (<https://eapp.nbis.mil>) or other system as provided by the Personnel Security Division (PSD). Contractors should anticipate a minimum of two weeks for the process, provided all requested information is timely, accurate and complete and that no adverse information is received. A background investigation generally will require that the candidate has cumulatively resided in the United States for at least three of the past five years. This requirement is subject to certain exceptions assessed on a case-by-case basis by PSD in accordance with established federal personnel vetting standards.

(3) After the contractor employee fitness determination, each contractor employee with a favorably adjudicated background investigation shall be enrolled in and subject to the Library's continuous vetting process. Enrollment in the Library's continuous vetting process also requires enrollment in the Federal Bureau of Investigation (FBI) Record of Arrest and Prosecution Background ("Rap Back") program, which provides the Library with notification of any criminal activity by the enrollee. Upon enrollment in Rap Back, the Library shall provide each enrollee with a notification of their rights with respect to the collection and use of their fingerprints and to the accuracy of the information obtained from Rap Back, as well as a copy of the FBI Privacy Act Statement that describes how FBI may use their fingerprint images.

(4) The fact that the Library may conduct background investigations and continuous vetting on assigned contractor personnel does not relieve the contractor of the responsibility to provide qualified, reliable personnel of sound character and conduct. This includes providing contractor personnel who can maintain compliance with the Library's requirement of a drug-free workplace and federal laws regarding controlled substances (see the Controlled Substances Act, 21 U.S.C. § 801 et seq. for the definition of controlled substances). In the event that drug testing is required for a contractor employee to obtain a favorable fitness determination, the contractor will be responsible for bearing the costs of such testing, conducting the testing in a manner consistent with federal vetting standards, which are based on the testing protocols published by the Substance Abuse and Mental Health Services Administration (SAMHSA), and providing the results to the Library.

(5) The Library may require removal of contractor staff from Library facilities and revocation of access to Library information technology systems and non-public Library information if investigative results raise concerns regarding a contractor employee's fitness or the contractor employee is non-compliant with the Library's instructions or requests for information during the vetting process. In such cases, the Contracting Officer (CO) or Contracting Officer Representative (COR) will notify the contractor of the unfit determination and need for the contractor employee to return all government equipment such as badges, keys and network tokens if issued. Contractor management staff may be required to escort the contractor employee from Library premises.

(6) The contractor will ensure the COR and CO are notified of all changes to those contractor personnel performing work on this contract that require non-public access.

(End of Clause)

H.5 LC52.237-1 KEY PERSONNEL (AUG 2014)

The personnel designated as key personnel in this contract are considered to be essential to the work being performed hereunder. At least 30 days prior to diverting any of the specified individuals to other programs or contracts or as soon as possible if an individual must be replaced, for example, as a result of leaving the employ of the contractor, the contractor shall notify the contracting officer and identify proposed substitutions. No diversion or substitution shall be made by the contractor without written consent of the contracting officer.

The following personnel have been identified as Key Personnel in the performance of this contract:

Position/Labor Category	Name
Project Manager	

(End of Clause)

H.6 LC52.239-1 INFORMATION SECURITY (JUL 2025)

The work to be conducted is considered Controlled Unclassified Information (CUI) pursuant to National Institute of Standards and Technology (NIST) Special Publication (SP) 800-53 (rev 4) or current version. The Contractor shall ensure that all non-public Library information processed under this contract shall be protected from unauthorized use and mishandling by the Contractor. Information includes both hard copy (paper) formats and soft copy (stored in electronic form, e.g., hard disks, tapes, flash drives, CD-ROM/CD-R, etc.).

(a) The Contractor shall store hard copies and soft copies contained on removable media (e.g., tapes, floppy disks, flash drives, CD-ROM/CD-R, etc.) in a government-approved storage container per the direction of the Contracting Officer Representative (COR) or the Library of Congress Project Manager when not under the direct control of Contractor Key Personnel.

(b) The Contractor shall treat any information developed on security vulnerabilities and any Government provided non-public information as "CUI."

(c) The Contractor personnel shall label and protect this information as "Security Category: Moderate," placing this designation in the footer.

(d) The Contractor shall ensure that all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" are not emailed to or from an external email system. These documents may only be emailed between Library of Congress email accounts, or within a secured corporate email network.

(e) The Contractor shall ensure that all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" are shredded, burned, or otherwise destroyed before being disposed of in accordance with applicable corporate and federal records management policies.

(f) The Contractor shall dispose of all documents designated "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" remaining in the Contractor's possession at the end of the contract term.

(g) The Contractor shall ensure that all Contractor workstations used to process Library information utilizes anti-virus and anti-spyware utilities that are configured to continuously monitor and to automatically update as well as having automatic operating system patching in place.

(h) The Contractor shall ensure that all Contractor workstations used to process Library information employ a firewall that can either be software running on the workstation or a stand-alone firewall that protects the workstation from unauthorized access from any other devices, including devices on the Contractor's corporate network.

(i) The Contractor shall ensure that all Library information that is labeled "Security Category: Moderate," "Security Category: High" and "Limited Official Use Only" is encrypted using a [Federal Information Processing Standards Publication \(FIPS\) 140-3](#) validated application configured in FIPS mode. This includes information stored on internal hard drives and removable devices (e.g., CD-Rs, flash drives, etc.).

(j) The Contractor must provide a written list of anti-virus, anti-spyware, firewall, encryption products, versions and proof of licenses, along with the automatic operating system patching status, MAC address (if applicable) and user name for each system being used to process Library information. Patching shall include Operating System packages and third party software installed on any systems accessing the Library Networks.

(k) In accordance with NIST SP 800-61 (rev 3) or current version, the Contractor shall report to infosec@loc.gov, the Contracting Officer, and the COR any adverse events that are computer security related or computer security incidents (adverse events and computer security incidents as defined in NIST SP 800-61 (rev 3) or current version) concerning

Library CUI within 24-hours of its discovery. The contractor shall coordinate its response to such an event or incident with the Library.

(l) The Contractor shall not provide any government-furnished non-public documents, information, or licensed material in any form to anyone other than the Contracting Officer, the COR, or the Library of Congress Project Manager without the written approval of the Contracting Officer, the COR, or the Library of Congress Project Manager during the period of this contract or at any time afterwards.

(m) The Contractor shall not release any government documents or information related to IT Security in any form without the written approval of the Library's IT Security Group.

(n) The Contractor shall ensure that all Contractor personnel sign nondisclosure agreements (NDAs).

(o) The Contractor shall ensure that all Contractor personnel complete the Library of Congress IT Security Awareness Training on an annual basis.

(End of Clause)

H.7 LC52.239-2 SYSTEMS DEVELOPMENT LIFE CYCLE (SEP 2018)

The Information Technology to be provided under this contract is subject to the procedures established in the Library's Systems Development Life Cycle (SDLC) as follows:

(a) Requirements: The Contractor shall gather and analyze requirements and produce a system requirements document (SRD) accordingly.

(b) Design: The Contractor shall perform design analysis and complete a Systems Design Document which satisfies the requirements in the aforementioned SRD.

(c) Development: The Contractor shall develop, customize and/or configure the system according to system requirements and design specifications.

(d) Testing: The Contractor shall test the solution to ensure it satisfies all requirements, including security requirements documented in Library of Congress Directive (LCD) 5-410.1, Information Technology Security Policy. The Contractor shall remediate any identified vulnerabilities and weaknesses in accordance with LCD 5-410.1.

(e) Implementation: The Contractor shall support implementation and deployment of the tested solution into the Library's production environment.

(f) Documentation: The Contractor must either use the Library's SDLC templates, which will be provided by the COR upon request, or use an alternative format which satisfies all SDLC requirements as stated in (a) through (e) above. The COR will approve all SDLC deliverables.

(End of Clause)

H.8 LC52.239-3 ASSESSMENT AND AUTHORIZATION (JAN 2016)

The information technology identified in this contract is subject to Assessment and Authorization (A&A) prior to connecting the system(s) to the Library of Congress Network, and updated prior to deploying any significant changes to the system(s).

(a) The Contractor shall perform an Initial Security Assessment.

(b) The Contractor shall perform Assessment per NIST SP 800-37.

(c) The Contractor shall complete a Risk Assessment per NIST SP 800-30

(d) The contractor shall conduct independent Security Testing & Evaluation. Evaluation. Contractor personnel conducting this evaluation shall have no stake or responsibilities concerning the system, including those who directly designed/integrated/implemented the system for any IT System categorized as Moderate or High impact. The Contractor shall perform the Security Test & Evaluation on test equipment configured per the ITS hardening guidelines for that particular platform, either in the Library of Congress lab or on a system completely isolated from the Library of Congress Data Network. The Library will provide the hardening guidelines on request from the contractor.

(e) The contractor shall prepare and submit a complete Assessment package pursuant to NIST SP 800-37. The contractor shall prepare and submit the following A&A documentation to the COR using the standard Library of Congress template available at the CGD website:

- System Security Plan pursuant to NIST SP 800-18
- IT Contingency Plan pursuant to NIST SP 800-34
- Security Test & Evaluation Report

(f) The Contractor shall provide Authorization support to the Authorizing Official, including producing copies of the Assessment Package, drafting memorandums and assisting in the briefing of the Designated Approving Authority.

(g) The Contractor shall provide two (2) paper copies of each Assessment and Authorization deliverable. The contractor shall provide two (2) machine-readable copies each of the Assessment and Authorization deliverables in MS Word format, delivered on CD-ROM.

(h) The Contractor shall ensure that the IT system is not connected to the Library of Congress Data Network until accredited.

(End of Clause)

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.212-4	CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	NOV 2023
52.233-1	DISPUTES	MAY 2014
52.243-1	CHANGES—FIXED PRICE ALTERNATE I (APR 1984)	AUG 2018
52.253-1	COMPUTER GENERATED FORMS	JAN 1991

I.2 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

- ☐ (17) [Reserved]
- ☐ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (NOV 2016) of 52.219-9.
- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JAN 2025) of 52.219-9.
- ☐ (v) Alternate IV (JAN 2025) of 52.219-9.
- ☐ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☐ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).
- ☐ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).
- ☒ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).
- ☒ (34)(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).
- ☐ (ii) Alternate I (FEB 1999) of 52.222-26.
- ☐ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☒ (36)(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-36.

- ☐ (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).
- ☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
- ☐ (ii) Alternate I [Reserved].
- ☒ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (OCT 2022) of 52.225-3.
- ☐ (50) 52.225–5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).
 - ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
 - ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)
 - ☐ (56) 52.229–12, Tax on Certain Foreign Procurements (FEB 2021).
 - ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
 - ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
 - ☐ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).
 - ☐ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).
 - ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
 - ☒ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
 - ☐ (63) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).
 - ☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).
 - ☐ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
 - ☐ (ii) Alternate I (APR 2003) of 52.247-64.
 - ☐ (iii) Alternate II (NOV 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- ☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
 - ☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
 - ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).
 - ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).
 - ☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

I.3 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the period of performance.

(End of Clause)

I.4 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the period of performance; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed two (2) years and six (6) months..

(End of Clause)

I.5 LC52.212-3 INCORPORATION OF CONTRACTOR PROPOSAL (JUN 2016)

The contractor's proposal, dated is hereby incorporated into this contract by reference to the extent that the proposal does not contravene or contradict the terms and conditions of this contract. Terms and conditions of this contract, Federal Law, and the Federal Acquisition Regulation (FAR) take precedence over the contractor's proposal.

(End of Clause)

I.6 LC52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS (DEV) (FEB 2016)

FAR 52.212-4, Contract Terms and Conditions – Commercial Items. The clause is modified as follows:

(1) The Library will apply FAR 52.243-1 (Changes – Fixed Price) to any changes under this contract instead of section (c).

(2) The reference in section (d) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) The references in section (g)(2) and (i)(2) to the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 C.F.R. part 1315 refer instead to the Prompt Payment clause at FAR 52.232-25 as modified by the Library.

(End of Clause)

I.7 LC52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS - COMMERCIAL ITEMS (DEV) (MAY 2015)

FAR 52.212-5, The clause is modified as follows:

(1) The Librarian of Congress has the same rights and access provided to the Comptroller General in FAR 52.212-5.

(End of Clause)

I.8 LC52.227-1 ASSIGNMENT OF COPYRIGHT TO THE LIBRARY OF CONGRESS (DEC 2001)

The Contractor hereby transfers and assigns to the Library any and all rights in the works produced under the contract including but not limited to copyrights. As the sole owner of the works produced under the contract, the Library will exercise all exclusive rights in the works, including but not limited to the right to distribute the Work, consistent with the Library's ownership rights, including copyrights.

The contractor must include a similar clause into any subcontract under this contract.

(End of Clause)

I.9 LC52.232-25 PROMPT PAYMENT (DEV) (JUL 2013)

The Library of Congress is not an agency subject to the Prompt Payment Act. 31 U.S.C. 3901(a)(1). The clause is modified as follows:

(1) The following new paragraph (iv) is added to the conditions for paying interest penalty payments in section (a)(4): "(a)(4)(iv) The contract or purchase order contained a provision that expressly required the Library of Congress to pay an interest penalty."

(2) The reference in section (a)(5)(ii) to the Disputes clause at FAR 52.233-1 refers to the clause as modified by the Library.

(3) Section (a)(6) is replaced with the following: "Interest penalty payments shall be handled in accordance with the Prompt Payment clause at FAR 52.232-25 as modified by the Library."

(4) Section (b) relating to Contract Financing Payment is deleted.

(End of Clause)

I.10 LC52.233-1 52.233-1 (DEV) DISPUTES (MAY 2014)

To reflect the provisions of the Legislative Branch Appropriations Act, 2008 (Pub. L. 110-161, div. H., title I, § 1501, Dec. 26, 2007, 121 Stat. 2249, 31 U.S.C. 702 note), the clause is modified as follows:

The amount in sections (c), (d)(2)(i), and (e) is \$50,000 instead of \$100,000.

See also regulations of the Government Accountability Office Contract Appeals Board at 4 C.F.R. part 22.

(End of Clause)

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS**SECTION J - LIST OF ATTACHMENTS****J.1 ATTACHMENT LIST**

Title	Date	Number of Pages
Attachment J1 – Terms and Acronyms	9/23/2025	1 page printed
Attachment J2 – Questions Template	9/23/2025	1 page printed
Attachment J3 – Price Quote Template	9/23/2025	1 page printed

PART IV - REPRESENTATIONS AND INSTRUCTIONS

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

K.1 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;

- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

- (i) It ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

_____]. Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246—

(1) *Previous contracts and compliance.* The offeror represents that—

(i) It [] has, [] has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It [] has, [] has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that—

(i) It [] has developed and has on file, [] has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It [] has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component: Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, *Buy American—Free Trade Agreements—Israeli Trade Act*, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.” The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III.* If *Alternate III* to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American— Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line item No.	Country of origin
---------------	-------------------

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

[] (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003- 4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003- 4(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent*.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that—

(i) It [] is, [] is not an inverted domestic corporation; and

(ii) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it [] has or [] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) [] does, [] does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) [] does, [] does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror's own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of [Public Law 115-232](#).

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020
52.212-1	INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	SEP 2023

L.1 LC52.233-2 PROTESTS TO THE LIBRARY OF CONGRESS (DEC 2013)

Offerors may submit a protest directly to the Contracting Officer or to the Government Accountability Office. Protests filed with the contracting officer will be decided promptly, and may be appealed to the Library's Senior Procurement Executive for purposes of conducting an independent review of the contracting officer's decision.

(End of Provision)

L.2 QUOTE SUBMISSION INSTRUCTIONS - BEST VALUE TRADE-OFF

Quoters must comply with the submission instructions stated herein. If the quote does not comply with the submission instructions for the method of submission, as well as format and content, the quoter may be ineligible for award.

L.1 Submission Instructions

All quotes for the procurement shall be submitted electronically via email to the Contracting Officer Veronica Price, at vprice@loc.gov, and the Contract Specialist, Stefanie Fitte, at sfitte@loc.gov no later than the response date specified in the solicitation. Quoters must comply with the submission instructions specified in this solicitation. The Library has the right, at its discretion, to determine a vendor ineligible for award if their quote does not comply materially with the submission instructions. Quotes submitted through any means other than email will NOT be accepted.

Quotes shall remain valid for 60 days after the submission deadline, at a minimum.

L.2. Clarification Questions

Questions related to this solicitation must be submitted using Attachment J2 - Questions Template and emailed to the Contract Specialist, Stefanie Fitte via email at sfitte@loc.gov and to the Contracting Officer, Veronica Price vprice@loc.gov no later than December 10, 2025, at 11:00 AM Eastern Standard Time (EST). Questions received after this time may not be answered. Responses to all timely and relevant questions will be posted to SAM.gov as an amendment to ensure equal information is distributed to all potential quoters.

L.3. Quote Format

Quotes shall be submitted electronically. Separate electronic files shall be provided for each quote section with sections for factors as follows:

Volume I: Technical

- Factor 1-Technical Approach
- Factor 2- Staffing

Volume II: Pricing

- Factor 3 - Price

The format for all Technical Volume sections must be in either MS Word or Adobe formats 8.5 x 11 inch pages, single-spaced, 1-inch margins, Times New Roman 12-point font in text (headers, footers, headings, figure captions, tables, charts and graphs are permitted to have smaller than 12-point font but no smaller than 8-point font text; legible fonts other than Times New Roman can be used for headers, footers, headings, and figure captions). Each page must be numbered and labeled with the name of the vendor, the solicitation number, and quote section number.

Quoters shall submit their Technical Volume with the name "[INSERT VENDOR NAME]- 030ADV26Q0011 VOLUME I TECHNICAL". The Technical Volume shall not exceed 10 pages in length, not including the following: cover page(s), table of contents, draft PMP and appendixes. Pages exceeding the 10-page limit will not be read.

Quoters shall use Attachment J3- Pricing Quote Template for price quotes. Quoters shall submit their price quote as an excel file with the name "[INSERT VENDOR NAME]- 030ADV26Q0011 VOLUME II PRICING".

L.4. Content of Quotes

Quotes will be evaluated in accordance with Section M of this Solicitation. Quotes that fail to include all required sections shall be considered non-responsive and will not be considered for award. The quote must contain the following sections, in the stated order, labeled as indicated:

L.4.1 Volume I: Technical (shall not exceed 10 pages in length, not including: cover page, table of contents and resumes. Pages exceeding the 10-page limit will not be read)

L.4.1.1 Factor 1- Technical Approach

Quoters shall submit a narrative that describes how the quoter will approach the requirements of this solicitation. s shall describe an approach to managing performance and quality as well. The Technical Approach section shall include a description of the quoter's unique approach, goals, objectives, resources, reporting process, and responsibilities. The narrative must demonstrate the vendor's understanding of the Library's requirement and demonstrate that the quoter can provide the services required under the contract with specific references to the SOW. Quoters' shall not merely restate the solicitation requirements but present a rational methodology for fulfillment of the requirements. Quotes that merely restate the solicitation requirements may be rated as unacceptable.

Quoters shall submit a draft Project Management Plan (PMP) as part of their technical volume. The draft PMP shall outline the quoter's approach to managing the contract requirements, including technical approach, organizational resources, schedule, quality control process and management controls as required in Section C.3.1 of the Statement of Work.

L.4.1.2 Factor 2- Staffing

Quotes shall provide a staffing narrative of their proposed team composition that includes:

- a) Quoters' shall provide a description of their proposed team composition that includes labor category/contract role and an explanation of how this proposed labor category/contract role is relevant to the minimum required qualifications of each role as listed in Special Qualifications and Key Personnel within Section C of this solicitation. Sufficient information should be provided to support the proposed team's ability to fulfill the requirements of the solicitation, and the deliverables stated in Section C. Quoters' shall provide resumes for all proposed key personnel.

L.4.2 Volume II: Pricing (Quoters may include a cover page with a pricing narrative on a separate tab on the required excel spreadsheet.)

L.4.2.1 Factor 3- Price

Quoters shall use Attachment J3- Price Quote Template. Pricing shall include all services required by the solicitation and shall be fully burdened with all associated costs. Vendors must quote prices for each item in section B in order to be considered for an award. Partial pricing by a quoter shall render the quote non-responsive to the Library's requirement and the quote may not be considered for award.

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 EVALUATION – BEST VALUE TRADE-OFF

M.1 Evaluation Methodology & Process

The Library will award a contract resulting from this solicitation to the responsible quoter that provide the best value to the Library. The Library will evaluate the quotes and award the contract without discussions with quoters. Therefore, each quoter's initial quote should contain their best terms. The Library reserves the right to conduct discussions if the Contracting Officer determines it is necessary.

The Library will evaluate all quotes and award a contract in accordance with FAR Part 13, Simplified Acquisition Procedures, to the quoter that represents the best value to the Library. As a result, a comparative analysis of the quotes may be performed, and the best value shall be determined using trade-offs among all evaluation factors.

The Library reserves the right to enter into clarification and exchanges with some, none, or all quoters based upon the discretion of the Library. The Library also reserves the right to award without communications. Competitive ranges shall not be established.

M.2 Evaluation Factors

Best Value will be determined through the evaluation of the following factors listed in descending order of importance:

Factor 1 – Technical Approach

Factor 2 -Staffing

Factor 3 - Price

All evaluation factors other than price, when combined, are significantly more important than price.

M.2.1 Factor 1 – Technical Approach

The Library will evaluate the quoter's proposed technical approach, draft project management plan and information to assess the level of confidence to which the quoter demonstrates an understanding and capability to perform the work and fulfill the requirements of this solicitation. The Library will evaluate the quoter's quality assurance plan to determine its effectiveness in facilitating the successful performance of the contract. Quoters that exceed the requirements in a beneficial way may be rated better for their technical approach. The Library will utilize a confidence rating system to evaluate the technical approach. The Library will evaluate the quoter's approach to utilizing subcontracting to fulfill any requirements, if proposed.

M.2.2 Factor 2 –Staffing

The Library will evaluate the resumes of proposed key personnel and the experience of the quoter's staff for how relevant their experience is to the Statement of Work. The Library will evaluate the quoter's proposed staffing for demonstrated ability, experience, qualifications and expertise to perform the requirements of the solicitation. Quoters that provide key personnel who beneficially exceed the minimum criteria established in Section C may be evaluated more favorably.

M.2.3 Factor 3 – Price

The Library will assess the reasonableness of the total quoted firm fixed price, inclusive of all discounts. The Library will evaluate price volumes for completeness and reasonableness in accordance with FAR 13.106-3(a).

An award may be made to a quoter that is not the lowest priced if it is determined that a higher price will yield a better technical solution, although the Library will not pay a significantly higher price for a slightly better technical solution.

M.3 SAM Registration

In order to receive an award from the Library of Congress, your business must be actively registered in the System for Award Management (SAM) at the time of quote submission and at the time of award. If your business is not registered in SAM, your business will not be eligible to receive a contract from the Library.

M.4 Award on Initial Responses

The government reserves the right to select the best-suited quoter from initial responses, without engaging in discussions with quoters. Quoters are strongly encouraged to submit their best technical solutions and price in response to this solicitation.

M.5 Evaluation Scales

Quoters will be evaluated on a confidence ratings scale from Low Confidence to High Confidence as defined in the chart below. Any quoters that are rated Low Confidence in any technical factor will not be considered for award.

Confidence Ratings Scale	
High Confidence	The Government has high confidence that the quoter understands the requirements and will be successful in performing the requirements with little or no Government intervention.
Some Confidence	The Government has some confidence that the quoter understands the requirement and will be successful in performing the requirements with little or no Government intervention.
Low Confidence	The Government has low confidence that the quoter understands the requirements with will be successful in performing the requirements with little or no Government intervention.

Factor 3-Price will be evaluated as shown in Section M.2.3 and will not be rated with a confidence rating.

M.6 Discussions with Best-Suited Quoters

Once the government determines the quoter that is the best-suited (i.e., the apparent successful quoter), the government reserves the right to communicate with only that quoter to address any remaining issues, if necessary. These issues may include technical and price.

If the parties cannot successfully address any remaining issues, at the sole discretion of the Library, the Library reserves the right to communicate with other quoters to find the best-suited quoter.

M.7 Notice to Unsuccessful Quoters'

This is a simplified acquisition is being performed under FAR Part 13, therefore, debriefs will not be provided as described in FAR Part 15.

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